

KABC010056062023



IN THE COURT OF THE XXX ADDL. CITY CIVIL JUDGE
AT BENGALURU CITY
(CCH-31)

DATED THIS THE 2nd DAY OF APRIL, 2026

PRESENT

Sri. MADHU N.R., LL.M.,
XXX Addl. City Civil & Sessions Judge,
Bengaluru.

EX.NO.567/2023

DECREE HOLDER : Sri.L.Nagaraj
S/o N.Lokanath
Aged about 53 years,
R/at No.80/2, Mottappanapalya,
Near 4th Cross, Indiranagar,
Bangalore-560 038.

(By Sri.M.S.A.R, Advocate)

/VS/

JUDGMENT DEBTOR : Sri.M.Chandran
S/o Late Muniyappa
Aged about 66 years,
R/at No.222, Kristal Apartment,
Kaggadasapura, 19th Cross,
C.V.Ramanagar,
Bengaluru-560 093.

(By Sri.G.S., Advocate)

ORDER

The Decree-Holder has filed the present Execution Petition against the Judgment-Debtor seeking execution of the judgment and decree dated 29.09.2010 passed in O.S.No.930/2008 directing the defendant to pay the total amount of Rs.15,75,000/- towards principal and interest at the rate of 10%p.a on Rs.29,00,000/- from 03.08.2007 till 16.11.2008, on Rs.24,00,000/- from 17.11.2008 till 20.12.2008, on Rs.20,00,000/- from 21.12.2008 till 20.04.2009, on Rs.18,75,000/- from 20.04.2009 till 12.04.2010, on Rs.15,75,000/- from 13.04.2010 till the date of decree. Further, the defendant shall pay future interest at 6%p.a on the principal amount of Rs.15,75,000/- from the date of decree till payment and the attachment before judgment passed in the case is made absolute.

2. It is submitted that, earlier Ex.No.2099/2011 was filed against this Judgment-Debtor seeking execution of

decree in O.S.No.930/2008. The present petitioner is the objector in the said petition and he filed IA No.XXI Rule 58 R/w Section 151 of CPC claiming against the attachment of the immovable property and to release the property from the attachment wherein the said application was rejected by this Court. Thereafter, the objector filed Writ Petition Nos.6235-6236/2018 before the Hon'ble High Court to quash the order passed by this Court. The said writ petition was disposed in terms of compromise memo dated 20.01.2020. In pursuance of the said orders, the objector filed memo to withdraw the petition, which was allowed by this Court with liberty to file fresh execution petition. Subsequently, the objector has filed this execution petition seeking his claim of Rs.30,08,875/- against the Judgment-Debtor. Hence, the petition.

3. On the otherhand, the JDr has filed objection statement and contended that the petition is not maintainable and Decree-holder has no locus standi to file this petition against the JDr since there was no decree

passed against this JDr in O.S.No.930.2008. Further the petition is time barred and the decree is said to have been obtained by original Decree-holder, M/s.Reyami Interiors Pvt. Ltd. Therefore, he is not entitled for any sum payable under the said petition. The Decree-holder and JDr have no connection with each other in any of the suit or in O.S.No.930/2008 and therefore, the present petition is misconceived. Further, the Ex.No.2099/2011 was dismissed by this Court and therefore, question of filing this petition is not allowed and the same is hit by proviso 11 of CPC. Further submits that, the JDr is not a party to the alleged compromise petition in W.P.No.6235-6236/2018 and therefore, Decree-holder cannot claim against the JDr. Hence, prays to dismiss the petition.

4. Heard the learned counsel for both the parties on the applications and perused the records.

5. In the facts and circumstances of the case on hand, the points that arise for the consideration of this Court are: -

1. Whether the Decree-holder is entitled for the reliefs sought for ?

2. What Order?

6. The answer of this Court to the above points are as follows:-

Point No.1 : In the Negative

**Point No.2 : As per the Order,
for the following:**

REASONS

7. **Point No.1** : This Execution Petition is filed by the Decree-Holder seeking execution of the judgment and decree dated 29.09.2010 passed in O.S. No.930/2008. The case of the Decree-Holder is that the said decree directs payment of a sum of Rs.15,75,000/- towards principal along with interest at 10% per annum for the respective periods mentioned therein, and further future interest at 6% per annum on the principal amount from the date of decree till realization. It is also contended that the attachment before judgment ordered in the suit has been made absolute and the Decree-Holder is entitled to execute

the decree and recover a total sum of Rs.30,08,875/- from the Judgment-Debtor.

8. Per contra, the Judgment-Debtor has strongly opposed the petition contending that the same is not maintainable either in law or on facts. It is specifically contended that no decree has been passed against the present Judgment-Debtor in O.S.No.930/2008 and therefore the present Decree-Holder has no locus standi to initiate execution proceedings against him. It is further contended that the decree was obtained by M/s.Reyami Interiors Pvt. Ltd., and there is no privity of contract or relationship between the present parties. It is also urged that the earlier execution petition in Ex. No. 2099/2011 having been dismissed, the present petition is barred, and further that the Judgment-Debtor was not a party to the compromise entered into before the Hon'ble High Court in W.P. Nos. 6235-6236/2018. Hence, the Judgment-Debtor seeks dismissal of the petition.

9. It is not in dispute that the decree in O.S.No.930/2008 was originally passed in favour of M/s.Reyami Interiors Pvt. Ltd. against the Judgment-Debtor. The present petitioner was not the original Decree-Holder but claims right on the basis of the settlement entered into before the Hon'ble High Court of Karnataka in W.P. Nos. 6235-6236/2018. On perusal of the order dated 20.01.2020 passed by the Hon'ble High Court, it is clear that the writ petitions were disposed of in terms of a compromise memo entered into between the petitioner and Respondent No.1 therein, i.e., the original Decree-Holder. As per the said settlement, the petitioner agreed to pay a sum of Rs.19,00,000/- to the Decree-Holder and, upon such payment, the Decree-Holder agreed to withdraw the decree claim.

10. It is further relevant to note that clause (4) and (5) of the compromise memo state that the petitioner would be at liberty to recover the said amount from the Judgment-Debtor and to get himself impleaded in place of the Decree-Holder in the pending execution proceedings.

However, it is significant that the present Judgment-Debtor was not a party to the said compromise before the Hon'ble High Court. The liberty granted therein is only inter se between the petitioner and the original Decree-Holder and does not automatically confer the status of a Decree-Holder upon the petitioner as against the Judgment-Debtor. Further, though liberty was granted to the petitioner to get himself impleaded in Execution Petition No.2099/2011, the said execution petition is stated to have been dismissed. The petitioner has not placed material to show that he was formally substituted as Decree-Holder in accordance with law or that the decree has been validly assigned in his favour under the provisions of the Code of Civil Procedure. In the absence of a valid assignment of decree or an order of substitution by a competent Court, the petitioner cannot maintain an independent execution petition against the Judgment-Debtor. The execution of a decree can be sought only by the Decree-Holder or a person claiming under him in a manner known to law. Moreover, the compromise entered into before the Hon'ble High Court does not bind

the present Judgment-Debtor, as he was not a consenting party to the said settlement. Therefore, the petitioner cannot enforce the terms of the said compromise against the Judgment-Debtor in execution proceedings. Hence, this Court is of the considered opinion that the present execution petition is not maintainable and the petitioner is not entitled to the reliefs sought. Accordingly, this Court answers the Point No.1 in the Negative.

11. **Point No.2:** In view of the foregoing reasons and as per the observations made in respect of point Nos.1, this Court proceeds to pass the following:-

ORDER

The Execution Petition filed by the petitioner under Order XXI Rule 11 of CPC is hereby dismissed.

In the facts and circumstances of the case, there shall be no order as to costs.

(Dictated to the Stenographer Grade-II directly on computer, computerized by her, corrected and then pronounced by me in open court this the 2nd day of April, 2026.).

MADHU N R

Digitally signed by MADHU N R
Date: 2026.04.07 17:30:26 +0530

(MADHU N.R)

XXX Addl. City Civil and Sessions Judge,
Bengaluru.
